

(b) Further response to subparts 17.1(c) and (d) is **granted**. Defendant's objections are overruled. Defendant is ordered, for each subpart, to identify each person with knowledge of the facts that form bases for Defendant's denial and is ordered to disclose their addresses and telephone numbers as required by this interrogatory. Similarly, Defendant is ordered, for each subpart, to identify each document and tangible thing that supports the bases for Defendant's denial and is ordered to state the name, address and telephone number of each person who has knowledge of these documents. A referral to correspondence between counsel is insufficient.

3. Time for Further Responses. Defendant is required to provide further responses to Form Interrogatory No. 17.1(c) and (d) for Nos. 25-102 are due no later than ten (10) days from the date of this order.
4. Sanctions. Sanctions are denied. The Court finds that Defendants acted with substantial justification in making objections and preparing the responses that were served on Plaintiff. Each party to bear their own attorney's fees and costs for this Motion.
5. Plaintiff's Counsel is ordered to prepare and e-file a conforming order, approved as to form, no later than ten (10) days from the date of this hearing. Counsel are ordered to meet and confer to comply with this order and to take necessary and proper steps to implement this Court's order. The Court reserves its authority to refer this and all further discovery motions to a Discovery Referee.

6. 9:00 AM CASE NUMBER: C24-03185

CASE NAME: TRINA WEST VS. CRESCENT PARK EAH, L.P.

*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT

FILED BY: WEST, TRINA

TENTATIVE RULING:

Summary

Plaintiff Trina West ("Plaintiff")'s Motion for Leave to File a First Amended Complaint for Damages and Injunctive Relief is **granted**. No appearance is required at the hearing on November 26, 2025.

Background

In this case, Plaintiff alleges a breach of contract and habitability arising out of her tenancy at 1172 Ellis St., Richmond, CA 94804. Defendant Crescent Park EAH, L.P. ("Defendant") owns, operates and leases this property to Plaintiff.

Plaintiff filed her Motion for Leave to File a First Amended Complaint on October 1, 2025. The Motion was accompanied by a Notice, Memorandum of Points and Authorities, Declaration of Michelle Endo, a Proposed First Amended Complaint, and Proof of Service. Plaintiff also lodged a proposed order.

Plaintiff seeks to amend her complaint to allege additional facts and claims against Defendant. Defendant did not file an opposition to this Motion.

Analysis

Standards Governing Leave to Amend

The Court has discretion to allow amendment of pleadings under Code of Civil Procedure section

473(a)(1) "in furtherance of justice," and "upon any terms as may be just." Code of Civil Procedure section 576 grants the Court discretion to allow amendment of a pleading "at any time before or after commencement of trial, in the furtherance of justice." (Code Civ. Proc. § 576.) "California courts have 'a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.' [Citation omitted.]" (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) (See also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 [" '[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.' [Citation omitted.],"; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761].)

"Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceedings. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) (See also *Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]".].)

Non-Opposition

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose the Motion is a deemed to be Defendant's consent to the granting of the Motion.

Applied here, the Court finds good cause to grant leave.

Ruling

For the reasons set forth above, Plaintiff's Motion for Leave to File a First Amended Complaint is **granted**. The Court will execute the Proposed Order lodged by Plaintiff on October 1, 2025. Plaintiff's First Amended Complaint shall be deemed filed on November 26, 2025. Defendants shall have thirty (30) days to file a responsive pleading. All parties and counsel are ordered to appear at the case management conference on February 5, 2026. No appearance is required at the hearing on November 26, 2025.